

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Shella Deen, Presiding
Nancy Vasquez, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 17, 2026 TIME: 9:00 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8.E**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) for remote hearings. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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**LAW AND MOTION TENTATIVE RULINGS
9:00 A.M.**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	21CV387145	Myoung Jung Hwang v. Jikhan Jung et al.	Motion to Dismiss Scroll down to Line 1 for Tentative Ruling.
LINES 2 and 3	22CV393993	Winston Arver v. Michael Soon-An Chae et al.	Motion to Set Aside Dismissal and Motion to Strike Plaintiff Winston Arver filed a Motion to Set Aside a Dismissal and a Motion to Strike in <i>pro per</i> . A Substitution of Attorneys was filed in error on December 31, 2025, and has since been rejected by the court as Plaintiff's attorney of record, Attorney Madrid, did not consent to the substitution. As such, Plaintiff Arver is still represented by Attorney Madrid and these motions are not properly before the Court. The motions are DENIED, without prejudice. Opposing party to prepare the formal order.

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LAW AND MOTION TENTATIVE RULINGS

LINE 4	24CV440635	Lan Lam v. ESS Prisa II, LLC	Motion to Compel Plaintiff's appearance at deposition Defendant ESS PRISA II, LLC's (erroneously sued as EXTRA SPACE STORAGE) motion for an order compelling Plaintiff Lan Lam to appear for her deposition within 20 days from the hearing of this motion. The motion is brought pursuant to Code of Civil Procedure § 2025.450(a) on the grounds that Plaintiff failed to appear for her properly noticed deposition on December 5, 2025. The motion was accompanied by an appropriate proof of service indicating electronic mail service and mail service to Plaintiff. Defendant requests in the alternative that the case be dismissed. The Court has the authority to compel Plaintiff's deposition considering her ongoing non-appearance. "If, after service of a deposition notice, a party to the action ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it . . . , the party giving notice may move for an order compelling the deponent's attendance and testimony" (Code Civ. Proc. § 2025.450(a).) Here, Plaintiff has failed to appear for her deposition on December 5, 2025. Plaintiff has not communicated in any way since May 2025, including not serving any objection or request for rescheduling. No opposition to the motion was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. CRC Rule 8.54c. Failure to oppose a motion leads to the presumption that Plaintiff has no meritorious arguments. (See <i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal. App. 3d 481, 489.) Moving party meets its burden of proof. Good cause appearing, the motion is GRANTED. Plaintiff shall appear for her deposition at a code compliant location, within 20 days of this order, or on a date and location agreed between the parties. Defendant's request for dismissal of the case is DENIED. Moving party to prepare the formal order.
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LAW AND MOTION TENTATIVE RULINGS

LINE 5	24CV440808	Edgar Daniel Rios Alvarez et al. v. Target Corporation et al.	Motion to Compel (Subpoena) Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV464930	Wells Fargo Bank, N.A. v. Jaideep S. Pada	Motion for Summary Judgment Plaintiff Wells Fargo's motion is unopposed. Plaintiff gave notice of the motion on February 11, 2026. Any opposition was due to be filed on August 28, 2026, and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rules of Court, Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Where a responding party does not file an opposition to a motion for summary judgment, the moving party must still meet its initial burden of proof. (<i>Thatcher v. Lucky Stores, Inc.</i> (2000) 79 Cal.App.4th 1081, 1086-1087, <i>CDF Firefighters v. Maldonado</i> (2008) 158 Cal.App.4th 1226, 1239, fn. 2). A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subdivision (c)). Plaintiff has shown sufficient evidence to justify the grant of summary judgment in its favor; the motion for summary judgment is GRANTED. Plaintiff to prepare the formal order.
LINE 7	25CV477283	Shabana Pirani v. Comcast Cable Communications, LLC	Petition to Compel Arbitration Scroll down to Line 7 for Tentative Ruling.

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9:00 A.M.

Calendar Line 1

Case Name: *Myoung Jung Hwang v. Jikhan Jung et al.*

Case No.: 21CV387145

Before the court is defendant Jikhan Jung's motion to dismiss for failure to bring action to trial within five years. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. Background.

On or about November 13, 2017, plaintiff Myoung Jung Hwang ("Hwang") purchased 279,590 shares of defendant Subdream Studios, Inc. ("SSI") pursuant to a Restricted Stock Purchase Agreement ("SPA") by delivering to defendant SSI 52,640 shares of VR Plus Co., Ltd valued at \$588,498.36. (Complaint, ¶7 and Exh. A.)

Plaintiff Hwang purchased shares of defendant SSI in reliance on defendant Jikhan Jung's ("Jung") representation that large companies would invest in defendant SSI but no such large companies ever invested in defendant SSI. (Complaint, ¶8.)

Pursuant to the SPA, defendants were to provide plaintiff Hwang with regular financial reports for defendant SSI. (Complaint, ¶11.) Defendants abruptly stopped providing reports for the quarter ending on September 30, 2018. (*Id.*)

In March 2021, plaintiff Hwang sent a letter to defendants requesting to review the corporate records of defendant SSI, but defendant SSI did not respond to that request. (Complaint, ¶¶13 – 14.)

On August 11, 2021, plaintiff Hwang filed a complaint against defendants Jung and SSI asserting causes of action for:

- (1) Promissory Fraud
- (2) Breach of Fiduciary Duty
- (3) Breach of Contract
- (4) Breach of Covenant of Good Faith and Fair Dealing
- (5) Violation of California Corporations Code §1601 et seq.
- (6) Rescission
- (7) Unjust Enrichment

On December 30, 2021, defendants Jung and SSI jointly filed an answer to plaintiff Hwang's complaint.

On January 5, 2024, the court (Hon. Manoukian) issued an order, pursuant to an ex-parte application by plaintiff Hwang, striking defendant SSI's answer and directing the court clerk to enter defendant SSI's default.

In a January 29, 2026 minute order, the court (Hon. Deen) granted, in part, plaintiff Hwang's renewed motion for terminating sanctions. In a separate minute order of the same date, the court (Hon. Deen) granted plaintiff Hwang's motion for summary adjudication of the first cause of action for promissory fraud. Orders after hearing for these two motions were signed by the court (Hon. Lee) and filed on March 2, 2026.

On February 3, 2026, defendant Jung filed a motion for reconsideration of the court's orders (1) striking answer and (2) granting summary adjudication. Hearing on defendant Jung's motion for reconsideration was set for April 21, 2026.

On or about February 9, 2026, the court (Hon. Lee) issued an order, pursuant to an ex-parte application by defendant Jung to either advance the hearing of his motion for reconsideration or continue the trial date, then set for February 17, 2026. The court advanced hearing on defendant Jung's motion for reconsideration to February 10, 2026.

The minute order from February 10, 2026 is unclear and does not specify a ruling on defendant Jung's motion for reconsideration. In relevant part, the minute order reflects defendant Jung was not present and states, "Defendant Jung filed an ex parte application for reconsideration that the court granted to hear any arguments prior to the scheduled trial date. No papers regarding the substance of the motion were filed or opposed. There is no new information submitted to the Court to consider."

On February 23, 2026, defendant Jung filed a motion to set aside the minute orders of January 29, 2026 and the minute order dated February 10, 2026 arguing, in relevant part, that he did not receive notice of the court's February 9, 2026 order advancing the hearing on his motion for reconsideration to February 10, 2026. Defendant Jung's motion to set aside is currently set for hearing on October 13, 2026.

On April 23, 2026, the court clerk entered default against defendants Jung and SSI.

On June 3, 2026, the court (Hon. Lee) denied defendant Jung's ex-parte application to stay default judgment.

On June 22, 2026, the court (Hon. Lee) issued an order, pursuant to defendant's ex-parte application, continuing the prove-up hearing on plaintiff's application for default judgment to October 19, 2026 in order to allow hearing on defendant Jung's motion to set aside first.

On August 18, 2026, defendant Jung filed the motion now before the court, a motion to dismiss for failure to bring action to trial within five years. On September 3, 2026, plaintiff Hwang filed opposition to defendant Jung's motion to dismiss. On September 10, 2026, defendant Jung filed a reply brief in support of his motion to dismiss.

II. Defendant Jung's motion to dismiss is ordered OFF CALENDAR.

"Entry of defendant's default instantaneously cuts off its right to appear in the action. The defendant is 'out of court.' It has no right to participate in the proceedings until either (a) its default is set aside (in which event, it may respond to the complaint), or (b) a default judgment is entered (in which event, it may appeal)." (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) ¶5:6, p. 2 citing *Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385 – 386; see also *People v. One 1986 Toyota Pickup* (1995) 31 Cal.App.4th 254, 259.) "Entry of default ousts the court of jurisdiction to consider any motion other than a motion for relief from default." (*Id.* at ¶5:7, p. 3 citing *W.A. Rose Co. v. Municipal Court* (1959) 176 Cal.App.2d 67.) Consequently, the court is without jurisdiction to consider defendant Jung's motion to dismiss.

In reply, defendant Jung maintains the court has inherent authority to dismiss pursuant to Code of Civil Procedure section 583.360, subdivision (a) which states, "An action shall be dismissed by the court *on its own motion* or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article." (Emphasis added.) That this court has the authority to dismiss does not alter the fact that the court is now being invited to do so by a defendant against who a default has been entered.

Under these circumstances, defendant Jung's motion to dismiss for failure to bring action to trial within five years is ordered off calendar without prejudice.

The Court will prepare the formal order.

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Calendar Line 5**Case Name:** *Edgar Daniel Rios Alvarez et al. v. Target Corporation et al.***Case No.:** 24CV440808

Defendant TARGET CORPORATION brings a motion to compel compliance with its subpoena to MetroPCS, for the production of telephone provider records of plaintiffs Edgar Daniel Rios Alvarez and Karla Bautista (“Plaintiffs”). The motion is brought pursuant to Code of Civil Procedure §§ 1985.3, 1985.6, 1987.1, 2017.010, 2023.010, and 2023.030, and Rules of Court, Rules 3.1345 and 3.1346. Defendant also seeks \$1,748 in monetary sanctions for plaintiffs’ misuse of the discovery process.

On November 17, 2025, Defendant issued a subpoena on MetroPCS seeking:

All historical transaction detail information and stored content phone records, including, but not limited to, records and contents of phone calls and text messages exchanged between Karla Bautista (650-906-5608) and Edgar Rios (650-776-0923) on or about September 10, 2022, including GPS locations.

Plaintiffs objected, asserting relevancy and privacy objections and the marital privilege as reasons to prevent production of the subpoenaed documents. The parties’ attempt to meet and confer resulted in an impasse and this motion. Plaintiffs claim that the meet and confer efforts were cut short, but the Court does not see any effort by Plaintiffs to continue meet and confer efforts after the motion was filed. Such meet and confers are not precluded and if Plaintiffs were indeed open to further attempts to resolve this discovery dispute they should have tried to do so.

Defendant argues that the information sought from MetroPCS – now limited to the date of the incident –September 10, 2022, is relevant and discoverable and that the subpoena should be enforced. In support, Defendant argues that Plaintiffs’ June 10, 2024 Complaint alleges causes of action for general negligence, premises liability, intentional tort, negligent infliction of emotional distress, negligent hiring, retention, and supervision, and loss of consortium and specifically alleges that on September 10, 2022 individuals employed by Defendant instigated a physical altercation with Plaintiff Rios in the presence of Plaintiff Bautista and their children on Defendant’s premises, and that they experienced “physical injuries, emotional distress, medical expenses, and other damages” due to the claimed incident.

Further, Plaintiffs recite that Plaintiff Bautista had recently been told at her deposition to maintain text messages with Plaintiff Rios on that date without any objection from her counsel that it was protected by the right to privacy. Defendant argues that the limitation for only communications between Plaintiffs on September 10, 2022, could reveal motive or explanation for Plaintiff Rios deciding to engage in a physical altercation with three individuals in the presence of his wife and children. Plaintiffs also testified at deposition that Plaintiff Rios was unfaithful in Plaintiffs’ marriage both before and after the alleged incident, and that he filed for divorce from Plaintiff Bautista.

Defendant further argues that Plaintiffs failed to assert privacy objections regarding their communications with each other at their depositions and that Plaintiffs testified on multiple occasions regarding conversations between themselves, and at no point did their

counsel assert objections that such communications were confidential or private. The only time a privacy objection was made during either deposition was for a question to Plaintiff Rios regarding his criminal contacts with local police.

In opposition, Plaintiff argues that Defendant's motion should be denied as the subpoena is overbroad, only targeted communications about the incident should be compelled, the marital privilege was not waived, the subpoena cannot lawfully be enforced based on 18 U.S.C. § 2702 and the meet and confer efforts were cut off by Defendant. Plaintiffs also oppose Defendant's sanctions request as they believe their opposition is substantially justified.

After full consideration the Court finds that that the information sought by Defendant's subpoena is relevant and discoverable because of plaintiffs' claims, their express disclosures in discovery and their waiver of the marital privilege during their depositions. Evidence Code §912 provides, *inter alia*, "...Consent to disclosure is manifested by any statement or other conduct of the holder of the privilege indicating consent to the disclosure, including failure to claim the privilege in any proceeding in which the holder has legal standing and the opportunity to claim the privilege". The Court is not persuaded by Plaintiffs' arguments.

Good cause appearing, Defendant's motion is GRANTED. Plaintiffs' objections to the MetroPCS subpoena are overruled. MetroPCS shall produce the information requested for the time period of September 10, 2022 *only* and shall provide a statement of compliance, verifying that *all* responsive documents have been produced. Both shall be produced within 20 days of the formal order on this motion. However, the Court DENIES the request for GPS locations, without prejudice, as this information does not appear to be relevant or reasonably calculated to lead to the discovery of admissible evidence. Sanctions of \$1,748 are awarded against Plaintiffs and shall be paid to Defendant also within 20 days of the formal order on this motion.

Moving party to prepare the formal order.

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Calendar Line 7

Case Name: *Shabana Pirani v. Comcast Cable Communications, LLC*

Case No.: 25CV477283

I. BACKGROUND

Plaintiff Shabani Pirani (“Plaintiff”) brings this complaint for exemplary damages against Defendant Comcast Cable Communications, LLC (“Defendant” or “Comcast”) (erroneously sued as “Xfinity sub of Comcast Cable Communications, LLC” and “Xfinity Internet subsidiary of Comcast Cable Communications, LLC”).

On September 15, 2025, Plaintiff alleges she contacted Defendant’s customer service department to resolve a billing discrepancy. (Complaint at p. 6.) Plaintiff alleges she “tendered full payment of the amount due, together with an advance payment for the subsequent month.” (*Ibid.*) Plaintiff received confirmation that the account was current. (*Ibid.*) However, Plaintiff alleges Defendant “falsified and overstated the balance due and wrongfully disconnected Plaintiff’s internet service.” (*Ibid.*)

Plaintiff visited a Xfinity store location on September 25, 2025. (Complaint at p. 6.) The store manager “deleted several transactions that had been erroneously reflected on Plaintiff’s account.” (*Ibid.*) However, “by the following morning, additional unauthorized transactions appeared on Plaintiff’s bill.” (*Ibid.*) Plaintiff alleges Defendant refused to correct the falsified balance, credit the deleted items, and debited funds from the wrong bank account without authorization. (*Ibid.*)

Plaintiff visited a different Xfinity store location on September 26, 2025. (Complaint at p. 7.) The store manager there “refused to acknowledge prior payments, declined to accept the corrections suggested by the billing department,” and “continued to authorize and process unauthorized debits from the same bank account.” (*Ibid.*) Plaintiff alleges Defendant made false and derogatory statements to other employees and customers insinuating that Plaintiff was dishonest and was attempting to evade payment. (*Ibid.*)

Plaintiff filed suit on October 14, 2025. Plaintiff filed a First Amended Complaint (“FAC”) on October 27, 2025. Therein, Plaintiff alleges two intentional torts seemingly for unfair business practices and defamation and seeks exemplary damages.

Defendant now moves to compel arbitration of Plaintiff's claims pursuant to the arbitration provision contained in the Xfinity Residential Services Agreement ("the Agreement"). Having considered the Agreement and the circumstances of its execution, the Court will grant the motion and stay the action. Defendant's request for judicial notice of the California Secretary of State Statement of Information for Comcast Cable Communications, LLC and Xfinity Bill Services LLC is granted pursuant to Evidence Code section 452, subdivision (c). (Request for Judicial Notice, Ex. A & B.) Likewise, Defendant's request for judicial notice of the Register of Actions obtained from the Santa Clara County Superior Court website is also granted pursuant to Evidence Code section 452, subdivision (d). (*Id.*, Ex. C.)

II. LEGAL STANDARD

Defendant maintains the Federal Arbitration Act ("FAA") governs the Agreement. The Agreement provides, "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act." (Declaration of Colin M. Padgett ["Padgett Decl."], Ex. 1 at ¶ 13(f).) Additionally, the Agreement concerns interstate telecommunication services. The FAA's term involving commerce is interpreted broadly. (See *Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [noting that the language reflects "that Congress intended the law's coverage to extend to the full reach of its commerce clause power"; see also *Citizens Bank v. Alqfabco, Inc.* (2003) 538 U.S. 52, 56-57.) Therefore, the FAA applies.

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

III. ANALYSIS

A. Default Has Not Been Entered and Comcast is the Correct Defendant

Plaintiff erroneously claims that default has been entered against Defendant. The clerk has rejected each of Plaintiff's requests for entry of default. (Request for Judicial Notice, Ex.

C.)¹ “However, it is now well established by the case law that where a pleading is belatedly filed, but at a time when default has not yet been taken, the plaintiff, has in effect, granted the defendant additional time within which to plead and he is not strictly in default.” (*Goddard v. Pollack* (1974) 37 Cal.App.3d 137, 141.) The untimely pleading is not void, and “[t]he proper procedure is for the plaintiff to move to strike the defendant’s untimely pleading and, if the court grants such relief, thereafter proceed to obtain the entry of the defendant’s default.” Although the instant motion and declaration in support of an automatic extension are untimely, the register of actions does not reflect that Plaintiff has moved to strike these filings. (Request for Judicial Notice, Ex. C.) Moreover, Plaintiff does not move to strike these filings by way of its opposition. As noted, Plaintiff’s attempts at entering default have been unsuccessful. Thus, Defendant has properly appeared, and the Court may consider the instant motion.

Furthermore, Comcast is the correct defendant in this action. Xfinity is the brand and trade name through which Comcast provides services. (Padgett Decl. at ¶¶ 7, 9, Ex. 1 at ¶ 1.) The arbitration provision also makes clear that “we” and “us” refers to Comcast who is the party that providing the service. (*Id.* at ¶ 13, Ex. 1 at ¶ 13(a).) Accordingly, Comcast is the correct defendant and may move to compel arbitration.

B. There is a Valid Agreement to Arbitrate

“[T]he moving party bears the burden of producing ‘prima facie evidence of an agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166, internal citations and quotations omitted.) Here, Defendant has attached a copy of the Agreement to its motion. (Padgett Decl., Ex. 1.)

The Agreement provides, “[y]ou accept this Agreement and agree to its terms by activating the Services, using the Services, continuing to use the Services after we provide notice of a change to this Agreement, or otherwise indicating your acceptance of the Services.” (Padgett Decl., Ex. 1 at p. 1.) In the Declaration of Colin M. Padgett, the Senior Director of

¹ Plaintiff has also served the incorrect registered agent for service of process. (Request for Judicial Notice, Ex. A & B.)

Customer Service Strategy and Operations for Defendant, Mr. Padgett attests that Plaintiff opened an account on October 3, 2024. (Padgett Decl. at ¶ 7.) He further attests that “[i]n 2024, it was Comcast’s routine and regular business practice to provide all Xfinity customers with a link to the Residential Services Agreement at the time the customer’s order is confirmed.” (*Id.* at ¶ 9.)

Plaintiff used the Xfinity internet services from October 3, 2024 through October 13, 2025. (Padgett Decl. at ¶ 11.) Plaintiff argues that she did not sign any agreement to arbitrate and that Defendant bears the burden of producing a valid agreement to arbitrate. (Declaration of Shabana Pirani at ¶¶ 10, 11.) As noted above, Defendant has met this burden. While Plaintiff contends she did not sign an agreement to arbitrate, she does not however, dispute using the services during this time period. “[I]t is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an *agreement* to arbitrate which matters.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 361, emphasis in original.) Here, Plaintiff’s assent is manifested through the continued use Defendant’s services. “A voluntary acceptance of the benefit of a transaction is equivalent to a consent to all the obligations arising from it, so far as the facts are known, or ought to be known, to the person accepting.” (Civ. Code § 1589; accord *Vita Planning & Landscape Architecture, Inc. v. HKS Architects, Inc.* (2015) 240 Cal.App.4th 763, 773.) Accordingly, there is a valid agreement to arbitrate.

C. The Scope of the Agreement Covers Plaintiff’s Claims

Paragraph 13 of the Agreement provides in relevant part: “This Arbitration Provision shall be interpreted broadly. ‘**Dispute**’ means any and all claims or controversies arising out of or related to any aspect of our relationship, including but not limited to, any and all (i) claims for relief and theories of liability, whether based in contract, tort, fraud, negligence, statute, regulation, ordinance, or otherwise” (Padgett Decl., Ex. 1 at ¶ 13(a).) Plaintiff’s claims concern a billing dispute that arises out of her relationship with Defendant and concerns the services offered under the Agreement. Plaintiff’s claims for intentional torts and exemplary damages fall within the scope of the Agreement. Additionally, Plaintiff does not claim that she opted out of arbitration. The Agreement gave her 30 days from her first service activation to

opt out of the Agreement. (Padgett Decl., Ex. 1 at ¶ 13(c).) There is no record that Plaintiff did so. (*Id.* at ¶ 16.)

Since there is a valid agreement to arbitrate and the scope of the Agreement covers Plaintiff's claims, the Court GRANTS the motion to compel arbitration. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

IV. CONCLUSION

The motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. This matter is SET for an Arbitration Review Hearing on February 11, 2027, at 10am in Department 1.

The Court will prepare the order.

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